

1. **Power to "A. and B., and their heirs."**—If a power be given to "A. and B. and *their heirs*," it is perfectly clear, that, although the limitation of an *estate* in such terms would so vest it in the grantees that they might convey it to a stranger, and the survivor devise it, the power is not to be construed as intended in like manner to be assignable and devisable (c).

Chief Justice Wilmot's opinion.—Upon the subject of such a power where it was given *personally*, and unaccompanied by any estate, to A. and B. and their heirs, Lord Chief Justice Wilmot observed, "It is asked What must become of the power upon the death of one of the trustees? It must be considered as a tenancy in common. Had the words been 'their several and respective heirs,' it would have been clear; and in common parlance, and according to the common apprehension of mankind, when an estate is given to two men and their heirs, no one not illumined with the legal nature of joint-tenancy could ever conceive the estate was to go to the heirs of the survivor. It is equivalent to saying, *With consent of both while they live; but when one dies, that consent shall devolve upon his heir; the heir of the dead trustee shall consent as well as the surviving trustee. One may abuse the power; I will supply the loss of one by his heir, and the loss of both by the heirs of both*" (d). But this was where A. and B. had a *mere power, for where A. and B. [*602] are trustees of an estate limited to them and their heirs, and the power constitutes an essential part of the trust, it will pass with the estate to the survivor (a).

Townsend v. Wilson.—In *Townsend v. Wilson* (b) a power of sale was given to *three trustees* to preserve contingent remainders *and their heirs*; and it was directed that the money to arise from the sale should be paid into the hands of the trustees *or the survivors or survivor of them*, and the executors, administrators, or assigns of such survivor, and there was a *power of appointment of new trustees*, with a

(c) *Cole v. Wade*, 16 Ves. 46, per Sir W. Grant.

(d) *Mansell v. Vaughan*, Wilm. 50, 51.

(a) See *infra*, p. 611.

(b) 1 B. & Ald. 608, 3 Mad. 261; and see *Cooke v. Crawford*, 13 Sim. 91.